



File No.: EXP202503190

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 11, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LÁSER METALPRINT 3D, S.L. (hereinafter, METALPRINT), through the agreement that is transcribed:

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File No.: EXP202503190 (PS/00107/2025)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection, and based on the following

FACTS

FIRST: On July 19, 2023, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against LASER METALPRINT 3D, S.L. with CIF B88112057 (hereinafter, METALPRINT) for the installation of a video surveillance system at its headquarters located in POLIGONO INDUSTRIAL LAS AVENIDAS, AVENIDA PRINCIPAL, NUM 7, TORREJÓN DE LA CALZADA, MADRID, with indications of a possible violation of Article 28 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

The reasons supporting the complaint are as follows:

The complainant states that they are an employee of the accused entity and that it has installed surveillance cameras in its facilities that could capture sound, without informing the employees about it. They also point out that there are cameras directed towards the workers' rest areas and the public road. The following images of the camera locations are provided.

- Photo 1: of the camera installed on the exterior facade of Warehouse 2. It is noted that there is an identifying sign indicating that it is a monitored area.
- Photo 2: of the area that the complainant considers is focused by the camera indicated in photo 1.
- Photo 3: of the camera installed on the exterior facade of the welding department warehouse, located at C/Décima Avenida, 33, Polígono Industrial Las Avenidas, Torrejón de la Calzada (Madrid). (...)
- Photo 5: specifications of the camera indicated in photo 3.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on September 27, 2023, the aforementioned complaint was forwarded to the accused entity, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified to METALPRINT on September 28, 2023, with acknowledgment of receipt.

On October 18, 2023, a response letter from METALPRINT was received by this Agency, indicating that the aforementioned company operates its own cameras intended for monitoring production processes, attaching the following documents:

- SERVICE PROVISION CONTRACT of the company ***EMPRESA.1 (hereinafter, ***EMPRESA.1) with ***EMPRESA.2 dated September 28, 2023. METALPRINT shares its registered office and joint administrators with ***EMPRESA.1, both being subsidiaries of a third company.
- Informative letter distributed to employees, detailing the surveillance systems and collecting their consent signature, titled "Employee Confidentiality Commitment," dated March 15, 2023, for signature by the employee and METALPRINT, although the aforementioned communication also refers to ***EMPRESA.1, and coincides with the model document also titled "Employee Confidentiality Commitment," with the same date of March 15, 2023, from ***EMPRESA.1. This document signed by

METALPRINT employees is not provided.

- Technical report with images captured as of October 6, 2023, from 4 cameras, all interior images, indicating that video is recorded, stored for a period of 31 days. None of the mentioned cameras indicate that audio is captured.
- Document titled "Metalprint Video Surveillance Cameras" with images captured as of October 9, 2023, from the 4 previously mentioned cameras, indicating that they correspond to the installation located at C/Décima Avenida, 33, Polígono Industrial Las Avenidas, Torrejón de la Calzada (Madrid).
- 3 undated photographs of the signs indicating the existence of areas subject to video surveillance, installed at: (i) entrance of the warehouse; (ii) welding area; and (iii) exterior facade of the warehouse (in this case, it is a sign from ***EMPRESA.2), coinciding with the last image provided by the complainant (photo 3).

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THIRD: On October 19, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, METALPRINT is a company established in the year 2018, with a business volume of €1,338,000 in the year 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated. The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues: The Image is a Personal Data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data, and its protection is therefore subject to this Regulation. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

Article 4.2 of the GDPR defines the concept of "processing" of personal data as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval,

consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction.”

Article 4.7 of the GDPR defines the “data controller” or “controller” as: “the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law.”

In turn, Article 4.8 of the GDPR defines the “processor” as the natural or legal person, public authority, agency, or other body that processes personal data on behalf of the controller.

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as acknowledged by METALPRINT, in its capacity as data controller, in accordance with Article 4.7 of the GDPR, since it determines the purposes and means of the installed video surveillance system, indicating that it operates 4 cameras intended for monitoring production processes, providing an explanatory document of the arrangement of said cameras and their field of vision (monitoring) in the document titled “Metalprint Video Surveillance Cameras.”

METALPRINT has also provided an Informative Letter distributed to its employees, detailing the surveillance systems, expressly stating in point 13 of said letter that “the employee has been informed and is aware of the recording by external video surveillance circuit of the facilities.” However, the security service contract provided by METALPRINT is the one signed by ***COMPANY.2 with ***COMPANY.1, a company with which METALPRINT shares its registered office, indicating in that contract ***COMPANY.2 as the Processor.

It is therefore pertinent to analyze whether the processing of personal data carried out through the disputed video surveillance system is in accordance with the provisions of the GDPR and the LOPDGDD.

IV

Obligation Not Fulfilled. Processor

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The provisions regarding the data processor are set out in Article 28 of the GDPR, which stipulates the following:

- "1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.
2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.
3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:
 - a) shall process the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before the processing, unless that law prohibits such information on important grounds of public interest;
 - b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;
 - c) shall take all measures necessary to ensure compliance with Article 32;
 - d) shall respect the conditions laid down in paragraphs 2 and 4 for engaging another processor;
 - e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, to enable the controller to comply

with its obligation to respond to requests for exercising the rights of data subjects laid down in Chapter III;

f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the choice of the controller, shall delete or return all personal data after the end of the provision of processing services, and shall delete existing copies unless Union or Member State law requires storage of the personal data;

h) shall make available to the controller all information necessary to demonstrate compliance with the obligations laid down in this Article, as well as to allow and contribute to audits,

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including inspections, by the processor or another auditor authorized by said processor.

In relation to the provisions of letter h) of the first paragraph, the processor shall immediately inform the controller if, in their opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or the Member States.

4. When a processor engages another processor to carry out certain processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 shall be imposed on this other processor, through a contract or other legal act established in accordance with Union law or the law of the Member States, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures so that the processing is in compliance with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor shall remain fully liable to the controller for compliance with the obligations of the other processor.

5. The adherence of the processor to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this article.

6. Without prejudice to the fact that the controller and the processor enter into an individual contract, the contract or other legal act referred to in paragraphs 3 and 4 of this article may be based, in whole or in part, on the standard contractual clauses referred to in paragraphs 7 and 8 of this article, even when they are part of a certification granted to the controller or processor in accordance with Articles 42 and 43.

7. The Commission may establish standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the examination procedure referred to in Article 93, paragraph 2.

8. A supervisory authority may adopt standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the consistency mechanism referred to in Article 63.

9. The contract or other legal act referred to in paragraphs 3 and 4 shall be in writing, including in electronic format.

10. Without prejudice to the provisions of Articles 82, 83, and 84, if a processor infringes this Regulation by determining the purposes and means of the processing, it shall be considered a controller with respect to that processing."

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In this case, there is evidence of the processing of personal data, which METALPRINT acknowledges

in its capacity as the data controller, in accordance with Article 4.7 of the GDPR, as it determines the purposes and means of the installed video surveillance system, with 4 cameras intended for monitoring production processes.

However, the security service contract provided by METALPRINT is the one signed by ***EMPRESA.2 with a third company, with which METALPRINT shares its registered office. And it is METALPRINT, as the data controller, that must formalize a data processing agreement, with the content provided in the aforementioned Article 28 of the GDPR, as ***EMPRESA.2 also processes personal data of METALPRINT, making such a contract necessary to comply with the obligations of the GDPR.

Therefore, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to METALPRINT for violation of the previously transcribed article, given that it has not formalized any contract or other written legal act with the content required in the aforementioned Article 28.3 of the GDPR with the data processor.

V

Classification of the infringement of Article 28 of the GDPR and qualification for the purposes of prescription

Article 83.4 of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purpose of the prescription period, Article 73 of the LOPDGDD establishes:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious infringements and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein, and in particular, the following:

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k) To assign data processing to a third party without the prior formalization of a contract or other written legal act containing the requirements set forth in Article 28.3 of Regulation (EU) 2016/679."

VI

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or

organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

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“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the severity of the possible infringement, especially regarding the consequences that its commission causes to the affected parties, the imposition of a fine, in addition to the adoption of measures, if applicable, would be appropriate.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of METALPRINT of €1,338,000 in the year 2023 is considered as a preliminary measure. For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed in accordance with the following circumstances, contemplated in the aforementioned provisions. It is preliminarily estimated that the following circumstances concur:

- The severity of the infringement (Article 83.2.a) of the GDPR): in this case, the contract provided by METALPRINT with the data processor, ***EMPRESA.2, has not been formalized by that company, but by another company, so METALPRINT has entrusted the processing of data to ***EMPRESA.2 without the prior formalization of a contract or other written legal act with the content required by Article 28.3 of the GDPR. The lack of formalization by METALPRINT of a contract or other written legal act prevents knowing with certainty the obligations corresponding to each of the participants in the processing chain. This uncertainty generates insecurities from a material point of view, such as regarding the

security measures that should be specifically adopted by the processor, following the provisions of METALPRINT, since as far as

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The data controller determines the purposes and means of the installed video surveillance system. Furthermore, although this sanctioning procedure arises from a complaint, the scope of the possible affected parties by this same circumstance would encompass all employees and clients or potential clients of METALPRINT.

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Intentionality or negligence in the infringement (Article 83.2.b) of the GDPR): In this regard, METALPRINT is processing personal data without having formalized a data processing agreement with the company that is, in fact, carrying out such functions. There is a notable negligence in that the compliance with the provisions contained in Article 28 has not been fulfilled, as there has not even been a formalized contract or other written legal act with the content required in the aforementioned article. The existence of a data processing agreement and its legal soundness is an essential element to ensure compliance with the obligations imposed by the GDPR on both the data controller and the data processor, especially in this case where METALPRINT provides a contract from another third party, with which it shares a registered office, from which it could be inferred that it has not even considered the formalization of a contract in its own name as the data controller of the cameras located in its facilities with the data processor of the data captured by those cameras.

For the purposes of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 28 of the GDPR, allows for an initial administrative fine of 10,000.00 euros to be set.

VII

Corrective Measures

If the infringement of the GDPR is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 28 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “(...) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedure, mechanism, or specific instrument for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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However, in this case, regardless of the above, in accordance with the evidence available at this moment regarding the initiation of sanctioning procedure, in the resolution that is adopted, METALPRINT may be required to adopt the following measures within a period of 30 days from the

date of enforceability of the resolution concluding this procedure:

- To prove the execution of the corresponding data processing agreement, with the content established in the aforementioned Article 28 of the GDPR.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the order to adopt the measure imposed by this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of a further sanctioning administrative procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, if applicable, the voluntary payment of the proposed amounts, exempts from the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to prove compliance with this obligation before this AEPD.

VIII

Conclusion

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against LASER METALPRINT 3D, S.L., with CIF B88112057, for the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of the GDPR.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirector for Data Inspection in the actions carried out prior to the initiation of this sanctioning procedure.

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FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction, for the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of 10,000.00 euros.

FIFTH: TO NOTIFY this agreement to LASER METALPRINT 3D, S.L., with CIF B88112057, granting a period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement, which will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 8,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 8,000.00 euros and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the

voluntary payment of the sanction is cumulative to the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure.

The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 6,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in case of opting for any of them, it must send to the General Subdirectorate for Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions it opts for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (8,000.00 euros or 6,000.00 euros), it must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for

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Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of withdrawal or renunciation of any action or appeal in the administrative route against the sanction to continue with the procedure in accordance with the amount paid.

The sanctioning procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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SECOND: On March 21, 2025, METALPRINT proceeded to pay the sanction in the amount of 6,000.00 euros making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: In the initiation agreement transcribed above, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles

47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure and their effectiveness will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 6,000.00 euros and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, METALPRINT has proceeded to acknowledge responsibility and to make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85

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LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 10,000.00 euros.

After LÁSER METALPRINT 3D, S.L. proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, pursuant to Article 85 of the

LPACAP, resulting in a final amount of 6,000.00 euros.

The effectiveness of the aforementioned reductions is conditioned, in any case, upon the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: TO DECLARE the termination of procedure EXP202503190, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER LÁSER METALPRINT 3D, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution within 30 days from the date this resolution becomes firm and enforceable.

FOURTH: TO NOTIFY this resolution to LÁSER METALPRINT 3D, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility upon the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be firm in the administrative pathway and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeaepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

1259-260325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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